

		causing Plaintiffs severe emotional distress. (Dash Decl. ¶¶ 4-6; 14-24; Jenkins Decl. ¶¶ 11-2.) CUSD contends that, as a government actor, it is immune from liability for intentional torts. In opposition, Plaintiffs correctly contend that, pursuant to Government Code §815.2, a public entity may be liable for the torts of its employees committed within the scope of their employment, as long as the employees themselves are not immune. (See <i>Lawson v. Superior Court</i> (2010) 180 Cal.App.4th 1372, 1385.) CUSD also contends that the conduct alleged is not sufficiently extreme and outrageous to support the claim. “Outrageous” conduct is that which is so extreme that it exceeds all bounds usually tolerated in a civilized society. (<i>Angie M.</i>, supra, 37 Cal.App.4th at p. 1226.) If Plaintiffs’ allegations are proven, reasonable minds could differ as to whether repeated formal interrogations of Plaintiffs regarding concededly meritless complaints—in a context where Plaintiffs feared for their employment—constitutes outrageous conduct. Accordingly, the motion is DENIED as to the ninth cause of action. Defendant to give notice.
107	Favero v. California Friends Homes 2025-01520569	MOTION TO COMPEL ARBITRATION - GRANTED Defendant, California Friends Homes dba Rowntree Gardens (“Rowntree Gardens”), moves for an order staying the present action and compelling contractual binding arbitration pursuant to an Arbitration Agreement. This case was filed by Plaintiff against Rowntree Gardens asserting claims for: (1) statutory elder abuse/dependent adult/neglect in violation of Welfare & Institutions Code §§ 15600 et seq, (2) negligence, and (3) violation of Patient’s Bill of Rights/Health & Safety Code § 1430. Rowntree Gardens contends that this action against Rowntree Gardens should be stayed and compelled to arbitration under the Federal Arbitration Act (“FAA”), 9 U.S.C. §§ 2-4,

		pursuant to an Arbitration Agreement executed by Plaintiff, Emilio Favero (“Plaintiff”); that the Arbitration Agreement is governed by the FAA as expressly stated therein; and that the Arbitration Agreement provides for arbitration of Plaintiff’s claims here as the Arbitration Agreement includes all claims and disputes, other than those specifically excluded by the agreement, arising from or related to the Admission Agreement or to the Resident’s residency, care or services provided at the Facility. Rowntree Gardens also contends that the Arbitration Agreement involves interstate commerce, placing it squarely within the FAA; that the Arbitration Agreement is valid and enforceable as Plaintiff had the capacity to enter into the agreement, and did not rescind the agreement, and that Plaintiff was not required to sign the Arbitration Agreement as a precondition to his admission at Rowntree Gardens. Rowntree Gardens further contends that the instant motion does not violate Plaintiff’s right to a trial by jury; that Plaintiff has the burden to defeat the Arbitration Agreement by a preponderance of the evidence; that Rowntree Gardens has not delayed in invoking the right to arbitrate; and that Plaintiff refused to stipulate to arbitration. <u>Refusal to Arbitrate</u> A petition to compel arbitration may be brought under Code of Civil Procedure section 1281.2. (Spear v. Calif. State Auto Assn. (1992) 2 Cal.4th 1035, 1041 (“Spear”).) Under Code of Civil Procedure section 1281.2, the court may order a petitioner and respondent to arbitrate a controversy if the court determines that an agreement to arbitrate the controversy exists and “[o]n petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy.” (Code Civ. Proc. § 1281.2.) Here, Plaintiff refused to stipulate to arbitration. (Declaration of Krista M. Schlueck (“Schlueck Decl.”), ¶¶ 6-7, Exs. C and D.) <u>Existence of Agreement to Arbitrate</u>
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		Arbitration Agreement that encompasses the claims in this action. Plaintiff does not dispute the validity or enforceability of the Arbitration Agreement. <u>Applicability of the Federal Arbitration Act</u> Rowntree Gardens asserts that the FAA applies and governs the Arbitration Agreement as expressly provided therein. In opposition, Plaintiff contends that the FAA’s procedural rules do not apply in this case and California procedural law governs, such that Code of Civil Procedure section 1281.2(c) applies and warrants denial of arbitration due to the presence of third parties and the risk of conflicting rulings. Plaintiff also contends that application of Section 1281.2(c) is not preempted by the FAA. The party asserting the FAA applies must show it applies by presenting evidence establishing the contract with the arbitration provision has a substantial relationship to interstate commerce, and the failure to do so renders the FAA inapplicable. (Carbajal v. CWPSC, Inc. (2016) 245 Cal.App.4th 227, 234.) “[T]he United States Supreme Court has identified ‘three categories of activity that Congress may regulate under the commerce power: (1) the channels of interstate commerce, (2) the instrumentalities of interstate commerce and persons or things in interstate commerce, and (3) those activities having a substantial relation to interstate commerce.’ [Citations.]” (Ibid.) “[A]rbitration-related proceedings in California courts are governed by the CAA’s procedural rules unless their application is preempted or the parties have expressly agreed that the FAA’s procedural rules apply.” (Quach v. California Commerce Club, Inc. (2024) 16 Cal.5th 562, 576.) Parties to an arbitration agreement may also expressly designate that any arbitration proceeding should move forward under the FAA’s procedural provisions rather than under state procedural law. (Cronus Investments, Inc. v. Concierge Services (2005) 35 Cal.4th 376, 394.) “[W]hen an agreement provides that its ‘enforcement’ shall be governed by
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		the FAA, the FAA governs a party’s motion to compel arbitration.” (See <i>Victrola 89, LLC v. Jamanm Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 346 (“<i>Victrola</i>”).) By stating that “enforcement of this agreement to arbitrate shall be governed by the Federal Arbitration Act” in the arbitration provision, “the parties intended to incorporate the FAA with respect to compelling arbitration.” (Ibid.) Thus, even if a transaction does not involve interstate commerce, “the parties may [] voluntarily elect to have the FAA govern enforcement of the [a]greement.” (Id. at 355 [“the presence of interstate commerce is not the only manner under which the FAA may apply.”]; see also <i>Barrera v. Apple American Group LLC</i> (2023) 95 Cal.App.5th 63, 76 [“since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.”].) “Absent such an express designation, however, the FAA’s procedural provisions do not apply in state court.” (<i>Valencia v. Smyth</i> (2010) 185 Cal.App.4th 153, 174.) Here, Article 3 of the instant Arbitration Agreement states: This Agreement shall be enforced and all arbitrations shall be conducted in accordance with the Federal Arbitration Act. If the Federal Arbitration Act does not permit arbitration in accordance with this Agreement, then the matter shall be arbitrated in accordance with state law. (Ex. A to Nguyen Decl., Arbitration Agreement, Article 3, emphasis added.) The plain language of the Arbitration Agreement therefore expressly provides that the agreement itself shall be enforced in accordance with FAA. In turn, it expressly provides that the FAA’s procedural provisions (9 U.S.C. §§ 3, 4, 10, 11) apply. (<i>Valencia v. Smyth</i> (2010) 185 Cal.App.4th 153, 173-174.) Article 1 provides that any dispute as to medical malpractice “will be determined by submission to neutral, binding arbitration as provided by California law, and not by a lawsuit or resort to court process, except as California law provides for judicial review
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		of arbitration proceedings.” Article 4 also provides, in relevant part, that “[t]he merits of any claim or dispute will be determined in accordance with the laws of California.” (Ex. A to Nguyen Decl., Arbitration Agreement, Article 4.) These provisions do not override the provision directing that the enforcement of the Arbitration Agreement shall be in accordance with the FAA. (See <i>Victrola</i> 89, <i>supra</i>, 46 Cal.App.5th at p. 349 [finding that arbitration agreement providing for disputes to be “decided by neutral arbitration as provided by California law” and informing a party that it “may be compelled to arbitrate under the authority of the California Code of Civil Procedure” have been held to mean that enforcement of the agreement shall be decided under California law, but only in the absence of an express provision that the enforcement of the agreement to arbitrate shall be governed by the FAA]; <i>Gravillis v. Coldwell Banker Residential Brokerage Co.</i> (2006) 143 Cal.App.4th 761, 784, fn. 4 [“The language in the Agreement that the ‘arbitration shall be conducted in accordance with [the CAA]’ (italics added) does not indicate, by itself, that the arbitration provision should be governed by California law”].) Plaintiff contends that the language in the Arbitration Agreement here is like that in <i>Wright v. Wellquest Elk Grove, LLC</i> (2026) 119 Cal.App.5th 267 where the Court of Appeal found that the parties did not expressly incorporate the FAA’s procedural provisions into the agreement such that the procedural provisions of the California Arbitration Act (“CAA”) applied. (<i>Wright v. Wellquest Elk Grove, LLC</i> (2026) 119 Cal.App.5th 267, 279 (“Wright”).) In <i>Wright</i>, the provision stated that “‘ . . . any and all claims or disputes arising from or related to this Agreement or to your rights, obligations, care, or services at WellQuest of Elk Grove shall be resolved by submission to neutral, binding arbitration in accordance with the Federal Arbitration Act” (Id. at p. 272.) The Court of Appeal explained that the arbitration agreement provided that “[t]he parties agreed to engage in arbitration ‘in accordance with’ the FAA, which means ‘in a way that agrees with or follows’ the FAA,” and concluded that this
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		meant that “any arbitration must be consistent with the FAA” but that the agreement did not specify whether this intent applied to substantive, procedural, or both types of the FAA’s provisions, which was fatal to the claim that the procedural provisions of the FAA applied. (Id. at pp. 280.) Unlike the provision in Wright, however, the subject Arbitration Agreement explicitly states that the Arbitration Agreement shall be enforced in accordance with the FAA such that it specifies that the procedural provisions of the FAA applies to the instant petition to compel arbitration. In turn, Code of Civil Procedure section 1281.2(c) does not apply. “The procedural provisions of the FAA ‘do[] not include a provision comparable to ... section 1281.2[, subdivision](c) and therefore requires courts to enforce written arbitration agreements even if there is pending litigation involving a third party that may result in conflicting rulings.’ (Acquire II, Ltd. v. Colton Real Estate Group, supra, 213 Cal.App.4th at p. 968, 153 Cal.Rptr.3d 135.) Under the FAA, ‘the court’s only option in these circumstances is to stay the court proceeding and compel the arbitration.’ (Rodriguez v. American Technologies, Inc. (2006) 136 Cal.App.4th 1110, 1115, 39 Cal.Rptr.3d 437 (Rodriguez).)” (Wright, supra, 119 Cal.App.5th at p. 279.) If the FAA applies, then Code of Civil Procedure section 1281.2(c) cannot be applied to deny enforcement of the arbitration clause. (Gloster v. Sonic Automotive, Inc. (2014) 226 Cal.App.4th 438, 446 [“Because the Federal Arbitration Act (9 U.S.C. § 1 et seq; FAA) contains no provision analogous to section 1281.2, subdivision (c), that subdivision cannot be applied to deny the enforcement of the arbitration clauses governed by the FAA. [Citation.]”.) Code of Civil Procedure section 1281.2(c) is a procedural provision under the CAA that may be enforced by California courts even with respect to arbitration contracts subject to the FAA’s substantive rules. (Nixon v. AmeriHome Mortgage Co., LLC (2021) 67 Cal.App.5th 934, 945.) Under the FAA, “if a dispute presents multiple claims, some arbitrable and some not, the former must be sent to arbitration even if this will lead to
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		piecemeal litigation.” (KPMG LLP v. Cocchi (2011) 565 U.S. 18, 19.) “From this it follows that state and federal courts must examine with care the complaints seeking to invoke their jurisdiction in order to separate arbitrable from nonarbitrable claims. A court may not issue a blanket refusal to compel arbitration merely on the grounds that some of the claims could be resolved by the court without arbitration. [Citation.]” (Ibid.) In this case, as enforcement of the Arbitration Agreement is governed by the FAA, the procedural provisions of the FAA apply to the instant petition to compel arbitration, the procedural provision in Code of Civil Procedure section 1281.2(c) under the CAA does not apply to deny enforcement of the agreement to arbitrate, and the Court must enforce the Arbitration Agreement even if there is a pending litigation involving a third party, i.e., Park Regency that might result in conflicting rulings. Therefore, Rowntree Gardens’ petition to compel arbitration is GRANTED. The action is STAYED as to Rowntree Gardens pending completion of arbitration. “If any suit or proceeding be brought in any of the courts of the United States upon any issue referable to arbitration under an agreement in writing for such arbitration, the court in which such suit is pending, upon being satisfied that the issue involved in such suit or proceeding is referable to arbitration under such an agreement, shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement, providing the application for the stay is not in default in proceeding with such arbitration.” (9 U.S.C. § 3.) As the Court has ruled on the Rowntree Gardens’ petition for arbitration, the request that the action and all discovery be stayed pending determination of the instant motion is moot. Rowntree Gardens to give notice.
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110	Nassiri v. Nassiri 2025-01535120	MOTION TO STRIKE (ANTI-SLAPP) - GRANTED Plaintiff Damian Nassiri sued Defendant Rattanaorn “Joy” Nassiri for (1) intentional infliction of emotional distress, (2) Fraud and (3) Negligence. Plaintiff and Defendant are currently in marital dissolution proceedings. In this civil action, Plaintiff alleges Defendant deceitfully filed for divorce and sought a restraining order against him. Defendant has moved to strike the complaint under Code of Civil Procedure section 425.16. To invoke the protection of the anti-SLAPP statute defendant must show that plaintiff's lawsuit “arises from” defendant's exercise of free speech or petition rights as defined in CCP § 425.16(e). (Equilon Enterprises, LLC v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 61.) Defendant argues that Plaintiff's claims arise entirely from Defendant's protected petitioning activity, including: 1. Seeking a TRO and a DVRO; 2. Filing a petition for divorce; 3. Communicating with law enforcement regarding domestic violence and child safety; and 4. Changing the locks of the family home pursuant to the TRO. Courts consistently hold that seeking restraining orders, filing divorce actions, communicating with law enforcement, and enforcing court orders constitute protected petitioning activity. (Navellier v. Sletten (2002) 29 Cal.4th 82, 90.) Statements and writings made during judicial proceedings are protected by the anti-SLAPP statute. Filing a lawsuit is an exercise of a party's constitutional right to petition for grievances. A claim for relief filed in court is “indisputably a statement or writing made before a judicial proceeding.” (Navellier v. Sletten (2002) 29 Cal.4th 82, 90; Briggs v. Eden Council for Hope & Opportunity (1999) 19 Cal.4th 1106, 1115.) A statement or writing is “in connection with” litigation if it “relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation.” (Neville v. Chudacoff
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